

Mutual Non-Disclosure Agreement

Evaluation of a cross-border payroll transformation programme

FICTIONAL SAMPLE FOR PRODUCT DEMONSTRATION ONLY. No real parties, employees, payroll records, or legal advice.

Reference	DEMO-NDA-2026-001	Effective date	1 September 2026
Party A	Aurora Payroll Labs B.V.	Party B	Northstar Retail Group GmbH
Term	3 years; confidentiality survives for 5 years	Contract value	No committed contract value
Governing law	The Netherlands	Document state	Draft for review

This Mutual Non-Disclosure Agreement (the Agreement) is entered into by Aurora Payroll Labs B.V., a fictional Dutch private company, and Northstar Retail Group GmbH, a fictional German company. The parties wish to evaluate a potential global payroll transformation programme and may exchange confidential commercial, technical, security, pricing, workforce, and implementation information.

In consideration of the mutual promises in this Agreement, the parties agree as follows.

1. Definitions

Confidential Information means non-public information disclosed in any form that is marked confidential or that a reasonable recipient should understand to be confidential in the circumstances.

Representatives means a party's employees, professional advisers, affiliates, and subcontractors who need the information for the Permitted Purpose and are bound by confidentiality duties.

2. Permitted Purpose and use restrictions

The recipient may use Confidential Information solely to evaluate, plan, and negotiate the proposed payroll transformation programme.

The recipient must not reverse engineer prototypes, use pricing to benchmark a competing procurement, or disclose Confidential Information to any person except its Representatives.

3. Exclusions

Confidential Information does not include information that the recipient can demonstrate was lawfully known without restriction, becomes public without breach, is received lawfully from a third party, or is independently developed without use of the disclosed information.

General ideas, skills, and experience retained in unaided memory may be used, provided that no source code, personal data, customer list, pricing schedule, or identifiable business plan is disclosed or reconstructed.

4. Required disclosure

If disclosure is required by law or a competent authority, the recipient must, where legally permitted, give prompt written notice and reasonably cooperate to limit the scope of disclosure.

5. Security and personal data

Each recipient must apply reasonable technical and organisational safeguards. Personal data may be exchanged only after the parties execute an appropriate data processing agreement and document the relevant transfer mechanism.

A suspected unauthorised disclosure must be reported to the disclosing party without undue delay and in any event within 48 hours after confirmation.

6. Return, deletion, and retention

On written request or termination of discussions, the recipient must return or securely delete Confidential Information within 30 days, except for one archival copy retained solely to meet legal or professional obligations.

7. Term and remedies

This Agreement continues for three years from the Effective Date. Confidentiality duties continue for five years after each disclosure; trade secrets remain protected while they qualify as trade secrets.

The parties acknowledge that damages may be inadequate for a material breach and that equitable relief may be available in addition to other remedies.

8. Governing law and disputes

This Agreement is governed by the laws of the Netherlands. The courts of Amsterdam have exclusive jurisdiction.

Schedule 1. Disclosure and review details

Topic	Agreed position	Operational owner
Primary purpose	Payroll transformation evaluation	Programme Director
Permitted recipients	Need-to-know Representatives	Legal Operations
Incident notice	Within 48 hours after confirmation	Security Lead
Deletion deadline	30 days after request	Information Governance

Signatures

The parties intend to be legally bound when this Agreement is signed by their authorised representatives.

Aurora Payroll Labs B.V.	Northstar Retail Group GmbH
Signature: _____	Signature: _____
Name: Authorised Signatory	Name: Authorised Signatory
Title: _____	Title: _____
Date: _____	Date: _____

End of fictional sample agreement. All entities, dates, and commercial terms are synthetic.